TENTATIVE RULING(S) FOR May 15, 2026
Department S14 – Judge Winston Keh

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CIVSB2426802

First Carrier v. IDX West et al

TENTATIVE RULING(S):

Before the court is Walmart's motion for attorney's fees. Plaintiff opposes and Walmart replies.

<u>The Complaint and Allegations</u>

This is a breach of contract action. On August 30, 2024, Plaintiff First Carrier, LLC (First Carrier) filed its Complaint against Defendants IDX West LLC aka IDX Los Angeles, LLC (IDX) and Walmart Inc. (Walmart) alleging one cause of action for breach of contract.

On June 26, 2023, Plaintiff provided shipping services to IDX per a bill of lading (BOL). (Compl. ¶5, Exh. A.) The value of Plaintiff's services under the BOL was $6,300.00. (Compl. ¶5, Exh. B.)

Relevant Procedural History

Walmart filed a motion for summary judgment to be heard on February 11, 2026. On January 16, 2026, Plaintiff filed a dismissal without prejudice of the entire action of all parties and all causes of action. Walmart filed an *ex parte* application to set aside the dismissal, which was denied. At the *ex parte* hearing, Walmart stated it intends to file a motion for attorney's fees.

Timeliness

"A notice of motion to claim attorney's fees for services up to and including the rendition of judgment in the trial court--including attorney's fees on an appeal before the rendition of judgment in the trial court--must be served and filed within the time for filing a notice of appeal under rules 8.104 and 8.108 in an unlimited civil case or under rules 8.822 and 8.823 in a limited civil case." (Cal. Rules of Court, rule 3.1702(b)(1).)

Effective January 1, 2024, one of the requirements for a limited civil action is that the amount in controversy does not exceed $35,000.00. (Code Civ. Proc., § 86, subd. (a).) Here, the amount demanded was less than $35,000.00. As such, the limited civil appellate rules apply here to determine the timing standards.

A notice of appeal of a limited civil action must be filed on or before the earliest of: (A) 30 days after the trial court clerk serves the party filing the notice of appeal a document entitled "Notice of Entry" of judgment a filed-endorsed copy of the judgment showing the date it was served; (B) 30 days after the party filing the notice of appeal serves or is served by a party with a document entitled "Notice of Entry" of judgment or a filed-endorsed copy of the judgment accompanied by a proof of service; (C) 90 days after entry of judgment. (Cal. Rules of Court, rule 8.822.) Here, the Register of Actions reflects that no judgment has been entered yet in this case. Therefore, the Court finds Walmart's fee motion timely filed.

Analysis of Merits

Walmart seeks contractual attorney's fees pursuant to Civil Code section 1717. As Walmart explains it, the contract providing for recovery of attorney's fees is an agreement between Plaintiff and third party In Line Brokerage Inc. (In Line Brokerage), which Walmart calls the In Line Agreement. (Lewis Decl., ¶¶2, 3, 6, Exhs. A, B, E.) According to Walmart, when

Plaintiff and In Line Brokerage entered into the In Line Agreement, one of Plaintiff's representatives agreed to In Line Brokerage's online agreement. (Lewis Decl., ¶3, Exh. B, pp. 031-048.)

The In Line Agreement states it is between the CARRIER named on the Signed Agreement Affidavit and In Line Brokerage. (Lewis Decl., Exh. B, p. 032.) Importantly, Walmart does not direct the court to any portion of the In Line Agreement showing the Signed Agreement Affidavit page that would identify the CARRIER. Lewis's declaration supporting the fees motion is 139 pages. "[J]udges need not paw over the files without assistance from the parties." (*Orr v. Bank of Am., NT & SA* (9th Cir. 2002) 285 F.3d 764, 775 (*Orr*), citing to *Huey v. UPS, Inc.* (7th Cir. 1999) 165 F.3d 1084, 1085.) Despite this failure to direct the court to relevant evidence, the Court can observe that the Signed Agreement Affidavit appears to be found on Bates page 031 of Exhibit B to the Lewis Declaration and specifies that Plaintiff First Carrier, LLC agreed to In Line Brokerage's online agreement on June 26, 2023. (Lewis Decl., Exh. B, p. 031.) However, Walmart does not direct the court to any part of the In Line Agreement specifying that Walmart is a party to or beneficiary of the contract. The portion of the In Line Agreement that purportedly authorizes recovery of attorney's fees states: "BROKER, shipper, consignee or owner of the property transported shall have the right to immediate injunctive relief in addition to any and all other remedies available at law, including but not limited to, the right to reimbursement of reasonable attorney's fees." (Lewis Decl., Exh. B, p. 039.)

Walmart argues that the In Line Agreement is "crystal clear." (Walmart Memo., 5:9.) This statement is not persuasive. The paragraph purporting to authorize attorney's fees does not define the terms BROKER, shipper, consignee, or owner. Nor does that paragraph mention Walmart Inc. Also, Walmart does not direct the court to any evidence showing that it is a broker, shipper, consignee, or owner of transported property that would give it the right to recover reasonable attorney's fees. Again, the court is not obligated to dig through 139 pages of evidence without guidance from the parties. (*Orr, supra,* 285 F.3d at p. 775.) As such, the In Line Agreement is not clear that Walmart is one of the entities entitled to recover attorney's fees under the contract.

The Court therefore finds that Walmart did not present evidence in the form of a contract entitling it to recover attorney's fees in this action.

Prevailing Party Status

Even if Walmart had presented evidence of a contract entitling it to recover attorney's fees, another obstacle is the requirement to show that Walmart is a prevailing party entitled to recover costs and fees.

Code of Civil Procedure section 1032, subdivision (a)(4), provides: " 'Prevailing party' includes the party with a net monetary recovery, a defendant in whose favor a dismissal is entered, a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant. If any party recovers other than monetary relief and in situations other than as specified, the 'prevailing party' shall be as determined by the court, and under those circumstances, the court, in its discretion, may allow costs or not and, if allowed, may apportion costs between the parties on the same or adverse sides pursuant to rules adopted under Section 1034."

Walmart contends it is a prevailing party because it is a defendant where neither plaintiff nor defendant obtained any relief and it is a defendant against a plaintiff who did not recover any relief against that defendant. Moreover, the Court can observe that Plaintiff filed a voluntary dismissal of the action here.

In opposition, Plaintiff disputes that Walmart is the prevailing party, arguing that under California law a voluntary dismissal generally does not render the defendant a prevailing party for purposes of contractual attorney's fees unless expressly provided by the contract. For this point, Plaintiff cites to Civil Code section 1717, subdivision (b)(2), which states: "Where an action has been voluntarily dismissed or dismissed pursuant to a settlement of the case, there shall be no prevailing party for purposes of this section." Plaintiff's position has merit.

Code of Civil Procedure section 1032, subdivision (b), provides: "Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." Civil Code section 1717 appears to be a statute that expressly provides otherwise regarding the right to recover costs.

“Many contracts include a provision requiring a contracting party to pay any attorney fees that the other party incurs to enforce the contract or in litigation arising from the contract.” (*Santisas v. Goodin* (1998) 17 Cal.4th 599, 602 (*Santisas*).) The Supreme Court explained that the Legislature enacted Civil Code section 1717 to ensure that contractual attorney fee provisions do not operate in an unfairly one-sided manner. (*Santisas, supra,* 17 Cal.4th at p. 602.)

Relying on Civil Code section 1717, subdivision (b)(2), the Supreme Court states that in voluntary pretrial dismissal cases, this provision bars recovery of attorney fees incurred in defending contract claims. (*Santisas, supra,* 17 Cal.4th at p. 602.) The high court construed subdivision (b)(2) “as overriding or nullifying conflicting contractual provisions, such as provisions expressly allowing recovery of attorney fees in the event of voluntary dismissal or defining ‘prevailing party’ as including parties in whose favor a dismissal has been entered.” (*Santisas, supra,* 17 Cal.4th at p. 617.)

Here, this is no doubt that Plaintiff voluntarily dismissed the entire action before trial. Likewise, there is no doubt that Walmart seeks recovery of attorney’s fees pursuant to a contract that is subject to Civil Code section 1717. Therefore, because Plaintiff dismissed the action, Civil Code section 1717, subdivision (b)(2), nullifies or overrides any conflicting contractual fees provision, including the In Line Agreement.

In its reply, Walmart only briefly addresses the prevailing party issue, arguing that during its *ex parte* application to vacate the dismissal, the Court “unequivocally” stated that under Civil Code section 1032, Walmart would be the prevailing party. (Walmart Reply, 3:7-9.)

If the Court did make such a statement, the Court is not bound by it because the question of attorney’s fees was not properly before the Court then, nor had the topic been fully briefed by the parties.

In addition, as highlighted above, Code of Civil Procedure section 1032, subdivision (b), includes important limiting language that “[e]xcept as otherwise provided by statute,” a prevailing party is entitled to recover costs. And the *Santisas* Court makes it clear that Civil Code section 1717 is a statute providing otherwise regarding entitlement to costs recovery in the context of contractual attorney’s fees where a matter has been dismissed voluntarily. (*Santisas, supra,* 17 Cal.4th at pp. 602, 617.) The Court finds that Civil Code section 1717, subdivision (b)(2), bars Walmart's recovery of contractual attorney's fees.

RULING

For all the reasons stated above, the Court rules as follows:

1) The Court FINDS that Walmart did not present evidence in the form of a contract entitling it to recover attorney's fees in this action.
2) The Court FINDS that Civil Code section 1717, subdivision (b)(2), bars Walmart's recovery of contractual attorney's fees.
3) The Court DENIES Walmart's motion for attorney's fees.

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CIVSB2508090

Conrad vs. GM

TENTATIVE RULING(S):

This lemon law case settled on December 2025, but the parties were unable to resolve the attorneys' fees and costs issues. The Court now addresses the merits of Plaintiff's motion for attorneys' fees and costs. The parties have fully briefed the issues, and the Court has considered all the submitted papers relating to Plaintiff's motion.

I. Analysis

In the current action, the parties agree that Plaintiff is entitled to attorney fees but dispute the amount. Plaintiff seeks $23,161.53, consisting of $14,665.00 in claimed attorneys' fees, a requested 0.5 multiplier enhancement of $7,332.50, and $1,164.03 in costs.

a. Attorneys' Fees.

i. Plaintiff's Counsels' Hourly Rates Should be Reduced.

Sepehr Daghighian, partner for the representing firm California Consumer Attorneys, P.C., submits the hourly rates of all the billers who worked on the matter as follows:

Name	*Position*	*Year of Bar Admission*	*2025/2026 Hourly Rate*	*Hours Worked*
Sepehr Daghighian	*Partner*	2005	$625	12.6
Michael H. Rosenstein	*Partner*	1993	$700	2.5
Brian T. Shippen-Murray	*Senior Associate*	2012	$550	2.6
Alastair Frederick Hamblin	*Attorney*	2012	$550	5.8
Miguel A. Ortiz	*Associate*	2017	$525	0.8

(S. Daghighian Decl. ¶¶7-11, Ex. A.)

GM argues that Plaintiff's counsels' rates are inflated and should be reduced. A review of court decisions has found that the hourly rates proposed by Plaintiff are higher than the range other judges have found reasonable in other similar Song-Beverly fee motions. (*See, e.g., Hamm v. FCA US LLC* (S.D. Cal. Aug. 16, 2019), No. 3:17-cv-0577-AJB-BGS, 2019 U.S. Dist. LEXIS 141480, at *8-9 (finding rates of $350-$550/hour to be reasonable); (*Petropoulos v. FCA US LLC* (S.D. Cal. May 29, 2019), No. 17-CV-0398 W (KSC), 2019 U.S. Dist. LEXIS 89984, at *5-6 (finding rates of $275-$550/hour to be reasonable); *Goglin v. BMW of North America, LLC* (2016), 4 Cal. App. 5th 462, 473-74 (finding a rate of $575 reasonable where BMW argued the case was not complex and provided evidence that counsel for BMW charged much lower hourly rates); *Shaw v. Ford Motor Co.*, (C.D. Cal. Jan. 3, 2020), No. 5:18cv1169 JLS (KK), 2020 U.S. Dist. LEXIS 2320, 2020 WL 57273, at *3 (approving rates between $200 and $550); *Canani v. Ford Motor Co.*, No. 2:21-CV-03346-SB-JC, 2022 U.S. Dist. LEXIS 106409, 2022 WL 2102893, at *3 (C.D. Cal. Feb. 14, 2022) (approving rates of $490 per hour for partner and $425 and $435 per hour for associates); *Odadjian v. Jaguar Land Rover N. Am., LLC* (C.D. Cal. Aug. 18, 2022, No. 2:21-cv-09333-SB-GJS) 2022 U.S. Dist. LEXIS 215767, at *5, finding that “a rate of no more than $500 is reasonable for an attorney with,” 15 years of experience.)

Although quite a few of Plaintiff’s attorneys have significant years of experience, their proposed rates are quite high for going lemon law cases, especially in San Bernardino County. Given the rate ranges reflected in the cases referenced above, the Court reduces the proposed attorneys’ rates as follow:

Name	*Position*	*Year of Bar Admission*	*2025/2026 Hourly Rate*	*Reduced Rate*	*Hours Worked*	*Award Reduction*
Sepehr Daghighian	*Partner*	2005	$625	$525	12.6	$1260
Michael H. Rosenstein	*Partner*	1993	$700	$575	2.5	$312.50
Brian T. Shippen-Murray	*Senior Associate*	2012	$550	$450	2.6	$260
Alastair Frederick Hamblin	*Attorney*	2012	$550	$450	5.8	$580
Miguel A. Ortiz	*Associate*	2017	$525	$425	0.8	$80

ii. Plaintiff’s Counsels’ Charged Hours are Mostly Reasonable.

In addition to contesting the billing rates, Defendant opposes certain charges as being excessive and unreasonable.

“In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged.” (*Premier Medical*

Management Systems, Inc. v. California Ins. Guarantee Assn. (2008) 163 Cal.App.4th 550, 564; *see also Gorman v. Tassajara Dev. Corp.*, (2009) 178 Cal. App. 4th 44, 101 ("The party opposing the fee award can be expected to identify the particular charges it considers objectionable").)

Defendant argues that many entries are related to the same task, making them both duplicative and then, cumulatively excessive. A review of the invoice submitted by Plaintiff reveals most of counsel's charges to be reasonable and related to this case. The only exception appears to be Plaintiff's fees anticipated for the reply and upcoming hearing. Counsel seeks 7.5 hours related to reviewing the opposition, drafting the reply, and attending the upcoming hearing. This is excessive, and the Court awards 1 hour related to the upcoming hearing, and 2.5 hours related to the review of opposition and reply. Such a modification results in a reduction of $2,100, calculated at the reduced rate set forth above.

b. Plaintiff is Not Entitled to a Lodestar Multiplier.

Plaintiff seeks a 1.5 multiplier based on the risk of taking this case on a contingency fee basis, the delay in payment, and the successful settlement. (Mot. at 10-12.)

"A trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation. Otherwise, the fee award will result in unfair double counting and be unreasonable." (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1139.) Although Plaintiffs' counsel apparently obtained a substantial recovery on behalf of their client, it is not clear the quality of representation "far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at" the rates requested. (*Ketchum v.* Moses, *supra,* 24 Cal.4th 1122, 1139.) Further, Defendant argues that the offer Plaintiff accepted is the same offer submitted to it at the beginning of this litigation. (Opp. at 1-2.)

Further, based on a review of recent case law, multipliers seem to be disfavored in Song-Beverly actions. (*See, e.g., James Holcomb & Rotoco, Inc. v. BMW of N. Am., LLC* (S.D. Cal. Feb. 14, 2020, No. 18cv475 JM (BGS)) 2020 U.S. Dist. LEXIS 26094, at *25 (denying request for a 0.3 multiplier, stating it was counsel's "own choice to take this case on a contingency basis" and should not be the basis for a multiplier); *Chavez*, *supra*, 2020 U.S. Dist. LEXIS 12187 (rejecting 0.3 multiplier based on the posture and lack of complexity of case); *Hamm*, *supra*, 2019 U.S. Dist. LEXIS 141480 (rejecting 0.5 multiplier because the case did not involve complexity or novel or difficult questions of law or fact); *Petropoulos, supra,* 2019 U.S. Dist. LEXIS 89984 ("Plaintiffs were not litigating important constitutional rights here. Nor were they representing the public interest. . . . They were seeking compensation and statutory penalties for a defective Durango.").)

Indeed, although Plaintiff points to instances in which a multiplier has been awarded, Plaintiff also attaches as exhibits court opinions and fee orders where multipliers were not awarded to counsel. (S. Daghighian Decl., Ex. D-E, G-K.) Given the lack of complexity of this case, the Court rejects Plaintiff's request for a multiplier.

c. Plaintiffs' Costs.

Defendant seeks to strike certain fees but does not put forward any specific argument.

In *Jensen v. BMW of North America, Inc.,* the Court of Appeal, Third District held that the use of the word "expenses," in Section 1794, subdivision (d), permits the recovery of items not included in the detailed statutory definition of "costs," and is not limited by Code of Civil Procedure section 1033.5. (*Jensen v. BMW of North America, Inc.* (1995) 35 Cal.App.4th 112, 137-138.)

Although Plaintiff's counsel has not attached invoices of the costs and expenses claimed, his invoice, attached as part of Exhibit A of Mr. Daghighian's declaration, does provide sufficient information to be able to understand the charges being sought for reimbursement. Given the broad ability to recover costs and expenses under Song-Beverly, the Court awards reimbursement for most of the costs associated with this current litigation, except for those enumerated below. Independent review of the submitted costs indicates that they are reasonable, except for the ones identified below because the ones below are not associated with any court filings on that date. Therefore, the Court strikes the following costs:

- Expense 09/11/2025 Attorney Service Fees: Rapid Legal Invoice# 12810650 = $171.75

- Expense 09/17/2025 Attorney Service Fees: Advanced Attorney Services = $145.90
- Expense 01/14/2026 Attorney Service Fees: Rapid Legal Invoice#13649279 = $16.50

Removing these charges would result in a reduction of $334.15.

RULING

Based on the aforementioned analysis, the Court GRANTS Plaintiff's Motion in part, awarding a total of $10,902.38 in attorneys' fees and costs, based on an award of:

i. $10,072.50 in attorneys' fees (reduced from $14,665.00);
ii. $829.88 in costs (reduced from $1,164.03); and
iii. A denial of the requested multiplier.